

25STCV37142 25STCV37142

County: los-angeles

Division: Civil Law and Motion

Department: 406

Hearing date: 2026-07-17

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Case Number: 25STCV37142 Hearing Date: July 17, 2026 Dept: 406

CLAUDIA HUG,

Plaintiff,

v.

GROWTH CENTERS OF

AMERICA, et al.,

Defendants.

Case No.: 25STCV37142

Hearing Date: July 17, 2026

[TENTATIVE]

order RE:

plaintiff's motions to compel further
responses (CRS# 6156, 7579)

BACKGROUND

On December 19, 2025, Plaintiff

Claudia Hug filed this action for employment discrimination against Defendants

Growth Centers of America; Growth Management, Inc.; Joy Lewis; and John Lewis.

On May 21 and 22, 2026, Plaintiff

filed the instant two motions to compel Defendant Growth Management, Inc.'s further responses to form interrogatories and requests for production. Defendant filed oppositions on July 2, 2026. Plaintiff filed replies on July 10, 2026.

LEGAL STANDARD

Upon receiving responses to its discovery requests, the propounding party may move for an order compelling further responses if the responses are incomplete or evasive, or objections are without merit or too general. (Code Civ. Proc., §§ 2030.300(a), 2031.310(a), 2033.290(a).)

A party “is entitled to demand answers to its interrogatories, as a matter of right . . . [and] the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory.” (Williams v. Sup. Ct. (2017) 3 Cal.5th 531, 541.) By contrast, the party seeking production of documents bears the initial burden of showing good cause through a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Once this showing is made, the burden shifts to the responding party to justify any objections. (Ibid.)

DISCUSSION

I.

Requests for Production (CRS# 6156)

a. Termination of Employment (RFP Nos. 41, 42, 48)

RFP Nos. 41, 42, and 48 seek documents pertaining to the end of Plaintiff's employment, including Plaintiff's complaints, discipline, or other reasons for termination. There is good cause for the information, as Plaintiff alleges that she was wrongfully terminated.

Defendant objected to the requests as overbroad and stated that it would only respond to the requests, if at all, consistent with the Court's prior order on Defendant's motion for protective order. However, the requests pertain specifically to Plaintiff and are

therefore not overbroad. The Court's prior order did not pertain to these particular requests and therefore has no bearing here.

The motion is GRANTED as to RFP Nos. 41, 42, and 48.

b. Complaints and Investigations (RFP Nos. 29, 30, 33, 35, 36)

RFP Nos. 29, 30, 33, and 36 seek documents pertaining to any reports regarding the mistreatment of Plaintiff and any actions taken by Defendant as a result of such reports. There is good cause for such information because Plaintiff alleges that she engaged in protected activity, that Defendant failed to address her complaints, and that Defendant retaliated against her. Defendant's objections regarding the breadth of the requests and the Court's prior order are without merit for the reasons explained above.

RFP No. 35 seeks any electronic mail sent by or to Plaintiff evidencing any complaints or concerns by any person regarding any inappropriate conduct at the worksite. This is overbroad. Not every email sent to Plaintiff, or every complaint made by anyone, is relevant just because it mentions misconduct. To the extent Plaintiff seeks to prove she engaged in protected activity, the request is limited to emails sent by Plaintiff reporting misconduct.

The motion is GRANTED as to RFP Nos. 29, 30, 33, 35, and 36. RFP No. 35 is limited to emails sent by Plaintiff reporting misconduct.

c. Medical Condition and Accommodation (RFP Nos. 112-126, 128, 129)

RFP Nos. 112-126 seek documents pertaining to Plaintiff's medical condition, or pertaining to Plaintiff's requests for accommodation or medical leave. There is good cause for such information because Plaintiff alleges that Defendant discriminated against her and failed to accommodate her. Defendant's overbreadth and privacy objections are without merit, as the requests pertain solely to Plaintiff.

The motion is GRANTED as to RFP Nos.
112-126, 128, and 129.

d. Sexual Harassment Training
(RFP Nos. 130, 131, 136)

RFP Nos. 130, 131, and 136 seek documents pertaining to sexual harassment training received by Defendants John and Joy Lewis. There is good cause for the information because Plaintiff accuses the named defendants of harassment. Training is relevant to Defendant's obligation to prevent harassment under FEHA. Defendant's overbreadth and privacy objections are without merit.

The motion is GRANTED as to RFP Nos.
130, 131, and 136.

e. Demotion (RFP Nos. 132,
133)

RFP Nos. 132 and 133 seek documents pertaining to Defendant's decision to cut Plaintiff's hours. There is good cause for such information because Plaintiff alleges that Defendant discriminated and retaliated against her. Cutting hours is a potential adverse employment action. Defendant's overbreadth and privacy objections are without merit.

The motion is GRANTED as to RFP Nos.
132 and 133.

f. Remaining Requests

Plaintiff's motion makes no attempt to justify the remaining RFPs. These RFPs are also facially improper because they seek overbroad information on issues unrelated to Plaintiff's claims. For example, RFP No. 73 seeks documents evidencing any complaint by anyone regarding staffing problems at all three facilities for a three-year period. But Plaintiff is not suing for the underlying violations. The lawsuit only pertains to Plaintiff's own experience. Plaintiff only worked as a personal assistant to John and Joy Lewis for five months. Thus, Plaintiff has failed to demonstrate good cause for the remaining requests.

g. Statement of Compliance

A statement of compliance “shall state that the production . . . will be allowed either in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.)

Defendant opposes the motion partly on the grounds that it produced responsive documents. However, that does not cure the deficient written responses. Defendant objected and unequivocally stated that it would not produce. Therefore, to the extent Defendant intends to produce documents, it shall provide a statement of compliance.

If Defendant is unable to comply, then it must provide a statement of non-compliance as follows:

A representation of inability to comply with the particular demand for inspection, copying, testing, or sampling shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party. The statement shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.

(Code Civ. Proc., § 2031.230.)

Lastly, Defendant shall provide a privilege log for any documents withheld based on a claim of privilege. (See Code Civ. Proc., § 2031.240(c).)

II.

Form Interrogatories (CRS# 7579)

a. FROG No. 207.2

FROG No. 207.2 asks if Plaintiff complained to Defendant about any of the unlawful conduct alleged in the pleadings, and if so, to provide specific information on each such complaint.

Defendant's objections are without merit. This is a standard form interrogatory routinely used in employment cases. Apart from the objections, Defendant responded: "Defendant denies that Plaintiff made any formal complaint of unlawful conduct of the type alleged in the Complaint. To the extent Plaintiff communicated any general workplace concerns, such communications did not constitute formal complaints of unlawful conduct and did not trigger any formal investigative obligation."

This is an evasive response. The FROG is not limited to "formal" complaints or complaints that "trigger investigative obligations." If Plaintiff made any complaint about the unlawful conduct alleged in the complaint, then Defendant must provide the information requested in FROG No. 207.2.

The motion is GRANTED as to FROG No. 207.2.

b. FROG No. 211.1

FROG No. 211.1 asks Defendant to identify and provide information for each benefit to which Plaintiff would have been entitled from the date of her termination to the present. Defendant responded that discovery was ongoing and reserved the right to supplement. This is a valid response because information on Plaintiff's benefits is reasonably subject to further investigation before it can be ascertained.

The motion is DENIED as to FROG No. 211.1.

c. FROG No. 214.1

FROG No. 214.1 seeks information on any insurance policy covering the claims at issue. Defendant's objections are without merit. Insurance information is expressly discoverable. (Code Civ.

Proc., § 2017.210.) Apart from the objections, Defendant responded: "Defendant will produce information regarding any applicable insurance policies, if any, consistent with Code of Civil Procedure section 2017.210 and the Court's rulings."

The response is incomplete.

Defendant cannot merely affirm its intent to produce information in compliance with the law. Defendant must actually provide the information in response to FROG No. 214.1. That is what the law requires.

The motion is GRANTED as to FROG No. 214.1.

d. FROG No. 216.1

FROG No. 216.1 asks for information on Defendant's denials and affirmative defenses. Defendant's objections are without merit as this is a standard form interrogatory, and Defendant is required to produce information on its own assertions.

Apart from the objections, Defendant responded: "no special or affirmative defenses have been asserted. Defendant filed a demurrer and motion to strike which are currently pending. Defendant reserves the right to supplement this response if and when any such defenses are asserted." Defendant's demurrer and motion to strike have since been heard, and Defendant filed an answer on May 19, 2026. Therefore, Defendant must respond to FROG No. 216.1.

The motion is GRANTED as to FROG No. 216.1.

CONCLUSION

Plaintiff's motions to compel further responses are GRANTED in part as set forth above. Defendant Growth Management, Inc. shall provide further responses within 20 days of today. The Court sanctions Defendant and its counsel, jointly and severally, in the amount of \$1,000, to be paid within 30 days of today.